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CRIMINAL LAW I (DIL 222.1)

LECTURE NOTE WEEK 1

SOURCES OF NIGERIAN CRIMINAL LAW

Nigeria is a secular (pluralized) state due to its multi-cultural, ethnic and religious diversity and this has greatly influenced the nature and sources of the Nigerian legal system. Many factors have played important roles in shaping the present day Nigerian legal system. Islamic law (especially in Northern Nigeria), local customs and traditions, English law, local legislations, court decisions and foreign laws are key players in discussions about the nature and sources of the Nigerian legal system.

The Constitution of Nigeria provides the definitive principles, rules, norms and doctrines from which the legality and application of all other legal norms in Nigeria are authenticated. Therefore, the Constitution is the *grund norm* (supreme law) of the country and all other laws are inferior to it and void to the extent of any inconsistency. Essentially, there are five sources of the Nigerian legal system, which by extension are the sources of Nigerian criminal law, namely: Customary and Islamic law, Received English law, Nigerian Local Legislation (including delegated legislation), Judicial Precedents, and International law.

1. Customary Law:

Customary laws are rules, regulations, beliefs and practices acknowledged by the indigenous people to whom they relate as regulating their behaviors in specific areas. Such areas may include marriage, divorce, inheritance, land and chieftaincy matters. In the case of *Oyewumi v. Ogunsesan* (1990 11WLR 182 at 207, Obaseki, JSC defined customary law as follows:

Customary law is the organic or living law of the indigenous people in Nigeria regulating their lives and transactions. It is organic in that it is not static. It is regulatory in that it controls the lives and transaction of the community subject to it. It is said that custom is a mirror of the culture of the people. I would say that customary law goes further and imports justice to the lives of those entire subject to it.

Customary law reflects the custom and culture of the people and it is rooted in the history, tradition and ethos of the people. Customary law is uniquely one of the sources of the Nigerian legal system not only because of its effectiveness in maintaining social order and regulating human conduct but also as a complement to other sources of law where they seem insufficient or unavailable. The Constitution of the Federal Republic of Nigeria, 1999 (as amended) provides a foundation for that under S. 315 (3) – (4) (b) and (c). However, customary law is said to be unwritten as opposed to English law which is written.

Customary law is a rule of conduct which has been customarily recognized and applied by the inhabitants of a specific community in their association with one another in the community and which has acquired the force of law because non-compliance with the rule or custom attracts sanctions. For customary law to be relied on as a source of law in Nigeria, it must have been taken judicial notice of by Nigerian courts by conditionality and prove except where it is notorious because of the barbaric, savage and superstitious nature of customs. In line with established legal principles, all rules of customary law in Nigeria are subject to three general tests to determine their validity before they can be enforced.

- a. For customary law to be recognized and enforced, it must not be repugnant to natural justice, equity and good conscience. The provision of *S. 16 of the Evidence Act* CAP E15 Laws of the Federation, states clearly that:

Provided that in case of any custom relied upon in any judicial proceeding, it shall not be enforced as law if it is contrary to public policy and is not in accordance with natural justice, equity and good conscience.

The repugnance doctrine in Nigeria emerged from the decision in the case of *Eshugbaye Eleko v. Government of Nigeria* (1931) AC 262 at 273 where Lord Atkin said:

The court cannot itself transform a barbarous custom into a milder one. If it stands in its barbarous character it must be rejected as repugnant to natural justice, equity and good conscience.

- b. For customary law to be recognized and enforced, such customary law must not be inconsistent or irreconcilable either directly or indirectly with any law for the time being in force; and it must be the existing law or custom and not the native law and custom of ancient time. See: *Lewis v. Bankole* (1908) 1NLR 81 at 83. Any customary law that is discordant with an extant legislation is rendered void to the extent of its inconsistency.
- c. For customary law to be recognized and enforced, such customary law must not be contrary to public policy. This means that a custom shall not be enforced if it is divergent with public policy. Anything that offends morality is contrary to public policy. Where a transaction is contrary to public policy, the law refuses to enforce or recognize it on the ground that it can be detrimental to the welfare or interests of the state or the public.

Note that for a custom to be valid, it must pass the three tests, it must not be repugnant to natural justice, inconsistent with any law and contrary to public policy. Proof of a particular custom by

evidence can be dispensed with if judicial notice has been taken of it in such circumstances stated in the Evidence Act.

2. Received English Law:

By virtue of being a British colony, English law became a source of Nigerian law and thus is applicable in the country by mechanism of local legislation. The Nigerian legal system is based on the English common law legal traditions by virtue of colonialization and the reception of English law through the process of legal transplant. English law has a tremendous influence on the Nigerian legal system and English law forms a substantial part of Nigerian law. By virtue of the *Colonial Laws Validity Act of 1865*, the Crown can legislate by Order-in-Council for any colony, protectorate or trust territory under colonial administration. Laws made by the colonial legislature are treated as part of Nigerian legislation.

To reaffirm and demonstrate the fundamental character and application of English law in Nigeria, the Supreme Court in *Ibidapo v. Lufthansa Airlines* (1997) 4 NWLR 124 held that subject to S. 315 (1) of the 1999 Constitution dealing with existing laws, all the received English laws, multi-lateral and bi-lateral agreements concluded and extended to the Federal Republic of Nigeria shall remain valid and enforced in Nigeria unless expressly repealed or declared invalid by a court of law or tribunal established by law. To that effect, the *Carriage of Goods by Air (Colonies, Protectorates and Trust Territories) Order of 1953*, which is a colonial legislation was held to be part of the body of Nigerian law even though it is omitted from the Laws of the Federation, 1990 since it had not been repealed or declared invalid by any court of law.

Note that the English laws received and applicable in the country consists of:

- a. The Common law of England

- b. The doctrines of Equity
- c. The Statute of General Application in force in England on the 1st of January 1900, and
- d. Statute and subsidiary legislation on specified matter. This includes English laws (statutes) made before 1 October 1900 which are not yet repealed.

S. 45 (1) of the Interpretation Act provides that the Common law of England and the doctrines of equity and the statutes of general application which were in force in England on the 1st of January 1900 are applicable in Nigeria only in so far as local jurisdiction and circumstances shall permit.

In *A.G v. John Holt* (1910) 2 NLR 1 at 21, Osborne C. J laid down two criteria for determining Statute of General Application, namely:

- (i) by what court is the statute applied in England; and
- (ii) To what classes of the community in England does it apply?

However, there are instances where statutes do not meet the above tests but are still accepted as statutes of general application. See: *I.G.P v. Kamara* (1943) 2 WACA 185.

Note that a statute may be of general application and yet courts may not apply it in Nigeria if convinced that local circumstances would not permit such law to be in force and if the application of such law would produce manifestly unreasonable results contrary to the intent of the statute.

3. Nigerian Legislation:

Nigerian legislation refers to the laws made by any legislative authority in Nigeria. Under a military regime, the laws are called *Decrees* and *Edicts* (for the federation and states respectively). Under a civilian regime, federal laws are known as *Acts* of the National Assembly

or Acts of Parliament, depending on whether the system of government is presidential or cabinet (parliamentary), while state laws are called *Laws* of the House of Assembly of the state.

By virtue of *S. 4 (1) of the 1999 Constitution* (as amended), the legislative powers of the country is bestowed on the National Assembly and by virtue of *S. 4 (2)*, the National Assembly has authority to make laws for the peace, order and good government of the federation to the exclusion of the State House of Assembly. Note that the National Assembly is a bicameral legislature consisting of the Senate and the House of Representatives and it follows the law-making procedure specified in *S. 58 and S. 59 of the 1999 Constitution* (as amended).

The powers of the National Assembly to legislate refers to:

- a. Any matter included in the Exclusive Legislative List, to the Exclusion of the State House of Assembly
- b. Any matter in the Concurrent Legislative List set out in the 1st column of Part II of the 2nd Schedule of the Constitution to the extent prescribed in the 2nd column opposite, and
- c. Any other matter with respect to which the National Assembly is empowered to make laws in accordance with the provisions of the Constitution.

Also, each state of the federation has its own law-making organ known as the House of Assembly of the state which has power to legislate on any matter in the concurrent legislative list and any other matter with respect to which it is empowered to make laws in accordance with the provisions of the Constitution. *S. 1 (1) of the 1999 Constitution* (as amended) provides that the Constitution is supreme and shall have binding force on all authorities and persons throughout the Federal Republic of Nigeria.

The enormity of the authority of the Constitution is demonstrated in S. 1 (3) which provides that if any other law is inconsistent with the provisions of this Constitution, this Constitution shall prevail and that other law shall to the extent of its inconsistency be void.

4. Judicial Precedent:

The principal duty of the Judiciary is the interpretation and application of the laws made by the legislature. The Judiciary decides matters (cases) before them on the basis of fact and in accordance with the law, without any interference, constraints, influence, enticement or threat from any quarter or for any reason. Therefore, the administration of justice through the interpretation of laws and punishment of offenders is the primary function of the Judiciary. However, while performing its function of interpreting existing laws, the Judiciary also invariably performs the role of lawmaker. Such circumstances may arise where the provisions of the prevailing laws may be ambiguous, absurd, and obsolete or sometimes two or more laws on a particular issue appear to be in conflict under a given context.

Where a court (or Judge) is faced with issues not governed expansively by the existing law, the Judge is therefore advised to act on the maxim *Ubi Jus Ibi Remedium* (whenever there is a wrong, there is always a remedy) and make fresh rules or extend the application of existing laws to deal with unique cases. For instance on the issue of what constitutes rape under S. 357 of the Criminal Code Act was expanded by the Supreme Court in the case of *Ogunbayo v. The State* [2007] All FWLR (Pt 365) 408 at 430, Per Ogbuagu, JSC:

The important and most essential ingredient of the offence of rape is penetration. It is also settled that sexual interference is deemed complete, upon proof of penetration of the penis into the vagina. Emission is not a necessary

requirement has however been held, that any, even the slightest penetration, will be sufficient to constitute the act of sexual intercourse. This is why, even where penetration was proved but not of such a depth as to injure the hymen, it has been held to be sufficient to constitute the crime of rape. Thus, proof of the rupture of the hymen is unnecessary to establish the offence of rape.

This unanticipated and affirmative move adds to the body of existing laws and it is continued by the process of the doctrine of judicial precedent. Judicial Precedent essentially operates to establish a consistent pattern of jurisprudence because the verdicts of superior courts over the years governing specific legal situations establishes a pattern of legal principles known as case law.

Judicial Precedent is the idea that the principle of law on which a court based its decision in relation to the material fact before it must be followed by a court below it in the judicial hierarchy. But a lower court can only follow a judgement of a higher court if that judgement has not been overruled by a higher court in the hierarchy of courts or by the court that gave the judgment. Therefore, the decision of the highest court will bind all other courts and until it is changed (or amended by statute, it will remain the law in respect of the matter covered. What constitutes a precedent for later judgements is the *ratio decidendi* (i.e. the reason for the decision). Statements made by the Judge in passing in the course of delivering his judgement is not strictly relevant and applicable to the issue before him is an *obiter dictum*. Note that where a decision or judgement of a court of law is arrived at by error of law, such decision or judgement is said to be given *per incuriam*.

The operation of the doctrine of Judicial Precedent is tied to the hierarchy and grading of courts. However, decisions of lower courts and courts of coordinate (or concurrent) jurisdiction are

merely persuasive in authority and effect. The doctrine of Judicial Precedent does not apply rigidly to certain courts like customary/area courts and sharia courts. In Nigeria, the Supreme Court is the highest court of the land and its decisions are final and infallible. The Supreme Court replaced the Judicial Committee of the Privy Council as the final court of the land with the adoption of the 1963 Republican Constitution.

5. International Law:

This is the branch of law known as *jus gentium* (the law of nations). Due to the growing interactions among states of the world, various legal instruments have been put in place to regulate the inter-relationships and activities of states among themselves. In addition to this, certain agreements, norms and obligations also exist which create obligations for states which are party to such agreement: to do or refrain from doing certain acts. Such agreements are variously known as Conventions, Covenants, Treaties, declarations, etc. For instance, the *International Convention on Prohibition of Human Trafficking*.

This is based on the fact that by ratifying the relevant treaty, Nigeria has signified its intention to be bound by the provisions of the treaty and can therefore not shy away from the performance of its treaty obligation under international law. This principle is expressed in the Vienna Convention on the Law of Treaties, which provides that 'every treaty in force is binding upon the parties to it and must be performed by them in good faith.

However, S. 12 (1) of the 1999 Constitution of Nigeria provides that:

No treaty between the federation and any other country shall have the force of law except to the extent to which any such treaty has been enacted into law by the National Assembly.

The provision requires that for an international obligation for which Nigeria is a party to take effect in the country, a domestic law accepting that obligation as part of Nigerian laws must first be made and passed by an Act of the National Assembly. This could be interpreted in such a way as to limit the enforcement powers of environmental institutions to those international agreements that have been specifically domesticated in Nigeria by an Act of the National Assembly.

It is only after that is done that elements of the obligation can be considered or incorporated into relevant laws and regulations for implementation in Nigeria. The Supreme Court emphasized this point in the case of *General Sani Abacha and 3 others v. Chief Gani Fawehinmi* (2000) 77 Law Report of Courts of Nigeria, 1254-1401, when it held that no treaty can be said to come into effect in Nigeria unless the provisions of such treaty have been enacted into law by the Nigerian National Assembly. According to Uwaifo JSC,

When we have an international treaty of this nature, it only becomes binding when enacted into law by our National Assembly...it is only such law that breathes life into it in Nigeria.

Therefore, for international laws and obligations to be a valid source of Nigerian law, such law must be domesticated and suited to Nigeria's specific conditions.